

Trambak Natha Bhagwat vs Shweta Trambak Bhagwat on 13 January, 2026

Author: Bharati Dangre

Bench: Bharati Dangre

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

INTERIM APPLICATION NO. 2048 OF 2025
IN
FAMILY COURT APPEAL (STAMP) NO. 3824 OF 2025

Trambak Natha Bhagwat	..	Applicant
Versus		
Shweta Trambak Bhagwat	..	Respondent
...		

Mr. Vijaykumar Dighe a/w Mr. Parmeshwar Turerao, for the
Applicant.

...

CORAM: BHARATI DANGRE &
MANJUSHA DESHPANDE, JJ.

DATED : 13th JANUARY, 2026 P.C:-

1. The Appeal filed under Section 19 of the Family Court Act, 1984 raises a challenge to the Judgment dated 18.06.2024, passed by the Family Court, Pune, in Petition No. A-914 of 2016 seeking dissolution of marriage under Section 12(1)(ia) and (ib) of the Hindu Marriage Act, 1955.
2. The petition is dismissed by the Family Court along with the counterclaim filed by the respondent, and hence the present Appeal is filed.

3. In filing the Appeal there is a delay of 155 days, which is sought to be condoned through the aforesaid Application.

We have heard the learned counsel for the Applicant and R.V.Patil 2/2 8 IA.2048.2025.odt perused the Application, which offered an explanation to the delay that is caused.

Apart from the ground that the Applicant's father was seriously ill, the Application also proceed to state that he was appointed on Election Duty by order dated 25.09.2024, and he was assigned the duty at Kothrud Constituency Pune, and this also added to the delay in filing of the Appeal.

Though the notice was issued and appearance has not been caused by the Respondent, today, none appear for the Respondent.

4. On hearing the learned counsel for the Applicant and perusal of the Application and testing the bona fide thereof, we find sufficient cause to be shown for condoning the delay of 155 days in filing the Appeal.

Interim Application No. 2048 of 2025 is made absolute in terms of prayer clause (a).

The Family Court Appeal is directed to be listed for hearing on 13.02.2026.

The learned counsel is at liberty to place documents on record including the depositions.

(MANJUSHA DESHPANDE, J.) (BHARATI DANGRE, J.) R.V.Patil